# Opening Statement: Keep the Line at Fifteen

Motion: *The minimum age of criminal responsibility in the Philippines should remain unchanged*
Side: Negative | Speaker: 1st Main Presenter | Stand: Keep the MACR at 15 (no lowering)
Target length: about 4 to 5 minutes (approx. 800 words spoken)

## THE SCRIPT

*[ THE BANG ] — slow, deliberate, eye contact. Pause after each line.*

**Fourteen years old. In the Philippines, a fourteen-year-old cannot legally be hired for regular work. That child cannot vote. Cannot sign a binding contract. Cannot marry. Again and again, our laws say one thing: *this person is not yet ready to carry adult consequences.***

**So today, the question before this house is simple: do we keep that same honesty in our criminal law — or do we tell that same child: you are too young to work, but old enough to be branded a criminal?**

*[ GREETING AND STAND ]*

A pleasant [morning / afternoon] to the honorable adjudicators, to our worthy opponents, and to everyone present. I am _____, first main speaker of the Negative side, and we stand firmly: the minimum age of criminal responsibility in the Philippines should **remain at fifteen**.

*[ DEFINITIONS AND BURDEN ]*

The minimum age of criminal responsibility is the age below which a child cannot be held criminally liable. Under Section 6 of Republic Act No. 9344, the Juvenile Justice and Welfare Act of 2006, as amended by Republic Act No. 10630 in 2013, that age is fifteen. To "remain unchanged" means exactly that: fifteen stays. And since fifteen is the law today, the burden of proof rests on whoever wants to change it.

*[ CLEAR THE MISCONCEPTION ] — this is your most important minute. Slow down.*

Let me be precise, because this debate is often argued on a misunderstanding. **Exemption from criminal liability is not exemption from accountability.** Under the law as it stands today:

- A child fifteen or below who offends must undergo an **intervention program** (Sections 6 and 20).
- The child's exemption **does not cover civil liability** — damages to the victim remain (Section 6).
- A child above twelve up to fifteen who commits a serious crime such as murder, rape, or kidnapping is **mandatorily placed in a Bahay Pag-asa** intensive juvenile intervention center (Section 20-A); repeat offenders are also covered (Section 20-B).
- Any adult who uses or profits from a child to commit a crime suffers the penalty in its **maximum period** (Section 20-C).
- A child above fifteen but below eighteen who acted **with discernment** may still be proceeded against under the law.

So the real choice today is not between punishment and impunity. That is a false choice. The real question is whether we should move the line of *criminal* liability below fifteen. We say no, on two grounds: the law, and conscience.

*[ PILLAR 1: THE LAW ]*

First, the law. Article XV, Section 3(2) of our 1987 Constitution commands the State to defend "the right of children to assistance, including proper care and nutrition, and special protection from all forms of neglect, abuse, cruelty, exploitation, and other conditions prejudicial to their development." Article II, Section 13 obliges the State to protect the physical, moral, spiritual, intellectual, and social well-being of the youth.

Beyond our Constitution, the Philippines ratified the UN Convention on the Rights of the Child in 1990. Article 37(b) requires that detention of a child be a measure of last resort and for the shortest appropriate time. Article 40 requires a minimum age and measures that avoid judicial proceedings where appropriate. In General Comment No. 24 (2019), the UN Committee on the Rights of the Child set fourteen as the floor it encourages, commended states with higher ages such as fifteen or sixteen, and urged them not to reduce it. Article 41 of the same Convention protects standards that are already more favorable to the child. We are not citing these because other countries are popular; we cite them because the Philippines bound itself to them. Lowering the age would be a step **backward** from obligations we freely accepted.

*[ PILLAR 2: THE MORAL GROUND ]*

Second, conscience. Justice means punishment proportionate to guilt, and guilt requires two things: **full knowledge** and **free consent**. That is the principle in our own moral tradition, and it is the reason the law asks about discernment at all. Developmental research consistently finds that the parts of the brain governing impulse control, long-term judgment, and resistance to pressure keep maturing well past the teenage years. A twelve-year-old is not a small adult. To punish a child as a criminal is to punish a capacity the child does not yet fully have.

And ask the moral question honestly: **who is truly responsible** when a child is used to carry drugs or commit theft? The adult who gives the order. Our law already punishes that adult at the maximum period. Lowering the age does nothing to that adult; it only reaches the child. The State is meant to act as *parens patriae* — the parent of those who have no one else. A parent who has not finished building the home does not punish the child for sleeping outside. Where Bahay Pag-asa facilities remain unbuilt or underfunded, the failure belongs to the system, not to the child.

*[ PILLAR 3: THE EVIDENCE ]*

Finally, look at the numbers before reaching for a harsher law. PNP data reported for 2018 placed crimes by children in conflict with the law at roughly 2.3 percent of all reported crimes. Juvenile Justice and Welfare Council figures show cases falling from about 26,850 in 2017 to about 4,383 in 2024. If cases rise again, the burden remains on our opponents to prove that the **age** is the cause — not poverty, not unfunded centers, not weak implementation. A single viral case, however painful, is not that proof.

*[ PRE-EMPTIVE FAIRNESS ] — calm tone; do not mock the other side.*

We do not deny that victims deserve justice. They do. That is exactly why the law already provides civil liability, mandatory intervention, Bahay Pag-asa, and maximum penalties for adults who exploit children. Our worthy opponents must show more: that labeling a younger child a criminal protects victims better than fully enforcing what the law already requires. We will listen closely for that evidence.

*[ THE GRAVE IMPACT ] — build volume, then drop to a firm, quiet finish.*

**So here is what is at stake. Lower the age, and the law will not catch the syndicate leader who sends the child — it will catch the child. It will not build a single missing Bahay Pag-asa — it will push more children into a system the State itself has not finished preparing. And it will tell every Filipino child born into poverty that the Republic's first answer to their mistakes is punishment, not protection.**

**A nation is measured by how it treats those who cannot yet defend themselves. Fifteen is not a loophole. Fifteen is a line — drawn by our Constitution, our treaties, and our conscience. Keep the line. Fix the system. Protect the child.**

**Thank you.**

## FALLACY CHECK: WHAT THIS SCRIPT AVOIDS

Every claim in the script was checked against the common debate fallacies below.

| Fallacy | Risk in this debate | How the script avoids it |
|---|---|---|
| Straw man | Claiming opponents want to "jail babies" or have no concern for children. | States only what was actually proposed (lowering below 15) and openly concedes that victims deserve justice. |
| False dilemma | Framing the issue as "prison or total impunity." | Lists the accountability the law already imposes (intervention, civil liability, Bahay Pag-asa, adult penalties). |
| Appeal to emotion (alone) | Using pity for children without evidence. | Every emotional line in the Bang and Impact is tied to a law, a treaty article, or data. |
| Bandwagon / appeal to popularity | "Other countries do it, so should we." | Cites the CRC as a binding obligation the Philippines ratified, not as a popularity contest. |
| Appeal to authority | "Experts say so" with no reasoning. | Explains the reasoning (knowledge + consent = culpability) and uses research as support, not as the whole argument. |
| Slippery slope | "If 12 today, then 9, then 7 tomorrow." | Does not predict unproven chains of events; argues only on the actual proposal. |
| Hasty generalization | Judging all children by one viral case. | Relies on aggregate PNP and JJWC figures and names this fallacy as the opponents' risk. |
| Post hoc / false cause | Assuming the law caused a rise or fall in crime. | Does not claim RA 9344 caused the decline; places the burden of proving causation on the side seeking change. |
| Ad hominem | Attacking lawmakers or opponents personally. | Addresses arguments only; refers to the other side as "worthy opponents." |
| Red herring | Drifting into unrelated issues (e.g., death penalty). | Every section returns to one question: should the line of criminal liability move below 15? |

## FALLACIES TO WATCH FOR FROM THE OTHER SIDE

| If they say... | Name it | Your one-line response |
|---|---|---|
| "Remember the case of [viral crime]..." | Hasty generalization | "One case, however painful, is not national data. The data say about 2.3 percent." |
| "Without lowering, children get away with crimes." | False dilemma | "Intervention, Bahay Pag-asa, and civil liability are not getting away. That is the law." |
| "Crimes rose after RA 9344, so the law failed." | Post hoc | "Show the cause, not just the sequence. Was it the age, or the unfunded centers?" |
| "Syndicates use kids because they're exempt." | Misplaced responsibility | "Then punish the syndicate — Section 20-C already does, at the maximum period." |
| "Kids today are smarter / more mature." | Anecdotal evidence | "Access to phones is not maturity of judgment. Show evidence of capacity, not exposure." |

## LEGAL AND MORAL BASIS (QUICK REFERENCE)

| Source | Provision | Use it to prove |
|---|---|---|
| 1987 Constitution | Art. XV, Sec. 3(2): special protection of children from neglect, abuse, cruelty, exploitation, and conditions prejudicial to their development. | The State's duty is protection first. |
| 1987 Constitution | Art. II, Sec. 13: State promotes and protects the physical, moral, spiritual, intellectual, and social well-being of the youth. | Youth policy must aim at development. |
| RA 9344 (2006), as amended by RA 10630 (2013) | Sec. 6: child 15 or under is exempt from criminal liability but undergoes intervention; civil liability remains. Child above 15 below 18 is exempt unless acting with discernment. | The current MACR is 15, and accountability already exists. |
| RA 10630 | Sec. 20-A: serious crimes by children above 12 up to 15 - mandatory Bahay Pag-asa (IJISC). Sec. 20-B: repeat offenders. | Serious offenses are already addressed. |
| RA 10630 | Sec. 20-C: adults who use, take advantage of, or profit from children in crimes get the penalty in its maximum period. | The law targets the true wrongdoer: the exploiter. |
| RA 9231 / Labor Code | Children below 15 generally may not be employed. | The Bang: "too young to work." |
| Age of majority laws | 18 for voting, contracts (RA 6809), and marriage (Family Code; RA 11596 prohibits child marriage). | The Bang: consistency of Philippine law. |
| UN CRC (ratified 1990) | Art. 37(b): detention as last resort, shortest time. Art. 40(3): minimum age; alternatives to judicial proceedings. Art. 41: more favorable standards are preserved. | Lowering = regression from a treaty obligation. |
| CRC General Comment No. 24 (2019) | Encourages a MACR of at least 14; commends states with higher ages (15 or 16) and urges them not to reduce it. | 15 is above the international floor; keep it. |
| UN Beijing Rules | Rule 4.1: the age should not be fixed too low, considering emotional, mental, and intellectual maturity. | Maturity, not convenience, sets the age. |
| Moral principle | Culpability requires full knowledge and free consent (also taught in the Catechism of the Catholic Church, nos. 1857-1859). | Children lack full capacity, so full criminal guilt is unjust. |
| Moral principle | Parens patriae: the State as parent of those without protection; proportionality of punishment to guilt. | The State must fix its system before blaming the child. |

### DATA USED

• PNP figures for 2018: children in conflict with the law were about 2.3% of 473,068 reported crimes (as reported by VERA Files). • JJWC figures: cases fell from 26,850 (2017) to 4,383 (2024); reports show an uptick in 2025 — be ready to answer it with the "prove the cause" line. • Verify exact figures against the latest PNP-WCPC / JJWC releases before the debate if your adjudicators require citations.

### DELIVERY NOTES

• Bang: start without greeting; say "Fourteen years old" then pause two seconds. • Greeting comes right after the Bang. • Hit the bolded phrases harder. • Grave Impact: rise in volume through "punishment, not protection," then slow and lower for "Keep the line. Fix the system. Protect the child." • If short on time, cut Pillar 3 first; never cut the misconception section or the Grave Impact.